

EISB/IBPT/20/2022-23

1st June 2022

Mr. K Jordan Stevenson
Bangalore.

Letter of Consultancy

Dear Mr. K Jordan Stevenson,

We are pleased to offer you the position of **IB Physics Teacher** with **Ebenezer International School**, Bangalore from **1st June 2022**. The terms and conditions of your appointment are as follows:

1. Your assignment for a fixed period commences from **1st June 2022** and ends on **30th April 2023**. Unless and until the assignment is renewed in writing (based on mutually accepted terms & conditions), the same will automatically end on the above-mentioned date and separate notice will not be issued by the institution on this behalf.
2. Your accountabilities and deliverables will be based on the discussions we had with you and as would be specified from time to time by the Competent Authority of the Institution.
3. During the period of the assignment, You will be paid a net salary of **Rs.119200/-pm (Rupees One Lakh Nineteen Thousand Two Hundred Only) per month**, Statutory deductions will be as applicable by the law.
4. Your emoluments etc. are strictly confidential and should not be shared or informed to others.
5. The casual leave for the entire Academic year is maximum of 12 days. In case if you join after commencement of the academic year, you would be entitled to leave purely and only on a Prorata basis. You are entitled for availing the leave after 3 months of your joining the institution. Leave has to be applied sufficiently in advance and sanctioned by the Principal. The employee cannot proceed on leave till it is sanctioned. The same cannot be claimed as a matter of right.
6. You understand and accept that during the middle of the contract period/academic year, you will not terminate the assignment and leave the institution without written consent of the competent / designated authority,
7. This assignment may be terminated prior to the stipulated period of expiration by the Institution suo-moto by giving a notice period of at least thirty(30) working days or proportionate assignment amount in lieu thereof without assigning any reason thereof.
8. Letter of resignation should be submitted in the form of hardcopy. Resignation without a required notice period is not acceptable.
9. In case where your request for termination of assignment is received during the Assignment Period, the acceptance thereof, is subject to the discretion of the competent authority and further it is mandatory that you should give a notice period of at least ninety working days or payment in lieu of notice. The notice period cannot include any vacation / festive holidays / any other leave as applicable and the last one month of your Assignment period.
10. Any unauthorized absence from duty for 7 days or more will be considered as abandonment of your services and no further notice will be required to be given to you on this behalf. Your services will be terminated on account of abandonment and no claim will be entertained in this behalf.
11. You will be working from the Institution premises for 6 days in a week as per the schedule laid by your Principal or the Person authorized / designated by the Principal / Management. You will attend the Institution punctually and be present in the Institution during the prescribed hours including Saturdays of each month and if required on weekly off / during Holidays.
12. This assignment and your continuation are subject to your having been found medically (physically and mentally) fit by an authorised and recognised Medical Practitioner.

13. You will prepare annual plans in the beginning of your tenure, in accordance with the Institution policy. In addition, you are expected to prepare course material and undertake research related to the curriculum / needs of the students and the Institution.
14. You will be responsible in the general organization of all activities including holding periodical examination, assessment, etc.
15. You will, in cooperation with other Institution authorities, share the responsibility of setting up and maintaining a learning environment suitable to the task and the students.
16. You will help organize and partake in the various co-curricular activities, programs and events organized by the Institution.
17. You will partake in appraisals and reviews of your work and instruction methods arranged by the administration and respond positively to such evaluations and make changes as appropriate.
18. You will prepare and provide oral / written assessments relating to the learning and development of students.
19. You will carry out student assessment work and record their progress and attainment of grades in an appropriate manner and in a timely fashion based on the norms laid by the institution.
20. You will not abuse your professional position for personal profit in money, goods or services from students or their families by indulging in activities such as tuitions, etc.
21. You will inculcate positive attributes including that of cleanliness, neatness and respect for orderly behavior in the students.
22. You will build and maintain cooperative relationships with students, parents and/or other staff and communicate with them on students' progress and attainment, drawing attention to special skills and talents as well as to problems or difficulties.
23. You will promote harmony and goodwill among the pupils and ensure no discrimination of any kind is imposed on any pupil on the ground of religion, caste, creed, nationality or community, etc.
24. You will not indulge in consumption of intoxicant of any kind whatsoever. You will not smoke / chew tobacco / gutka / pan inside the institution premises and/or in the presence of students.
25. The Institution expects you to follow a dress code which helps you to work comfortably and at the same time project a professional image to our students, parents, colleagues and the community we are a part of. Hence, it is essential that you take pride in your appearance and maintain proper dress code and general appearance during the working hours. You are expected to dress neatly and, in a manner, consistent with the duties being discharged.
26. You will observe and adhere to all the rules & regulations, office orders and / or settlements of the institution as may be applicable. You will discharge such duties as may be assigned to you including non-teaching duties.
27. In case there is any change in your qualification/s, residential address, landline number, mobile number, you will intimate the same in writing to the office within three days from the date of such change and get such change/s recorded; not providing the updated information would amount to an act of indiscipline.
28. You agree not to engage yourself directly or indirectly in any service or be concerned in any manner in any work / business other than that of the Institution and shall not associate yourself or let your work, name, image or personality be used by any media or other organization / Institution without the expressed consent of management in writing.
29. You will maintain all information, documents and / or materials gathered by you during the course of your engagement in strict confidence. You will not copy or make notes of such information / documents except in conjunction with your work for the institution. You will not, at any time, disclose or divulge or make public, except on legal obligation, any information regarding the institution's affairs or work carried out whether the same made known / available to you or become known / available to you during the term of your assignment.

30. You may be issued some materials such as business stationery, documents, etc. which will remain the property of the institution. You agree to return them in good shape and condition to the institution upon separation.
31. This letter expresses the understanding between you and the institution with respect to the subject matter and supersedes all prior proposals, agreements, representations and understandings.
32. "You must be proficient in modern technology and adhere to the usage of the various apps, office management tools, and software including but not limited to Social Media Management Software prescribed/ suggested by the organization for effective communication and general management of works/tasks/ responsibilities. The incumbent is expected not to use incognito mode while browsing & immediately respond to queries sent via e-mail/what's app etc irrespective of proof of its receipt by the incumbent i.e. for eg. in case of whats app message the incumbent who has access to the message being displayed/ flashed on the screen should immediately respond to it. The incumbent must effectively use digital communication platforms / Software including but not limited to Microsoft Teams / Zoom / Webex/G Suite".
33. This letter is being issued to you on the basis of information provided by you in the application and also at the time of interview. Original copies of your certificates, testimonials and previous employment records should be submitted along with the photocopies for verification. If any declaration given by you proves to be false or if you are found to have willfully suppressed any material information, this assignment will be liable to be terminated without any notice.
34. Nothing in this letter shall be deemed to create any relationship of partnership, or joint venture between you and the institution.
35. **Force Majeure- Neither party** shall be held liable or responsible to the other party nor be deemed to have defaulted under or breached this Agreement/contract for failure or delay in fulfilling or performing any term of this Agreement/contract to the extent, and for so long as, such failure or delay or hindrance is caused by or results from causes beyond the reasonable control of the affected party. A Party which is unable, in whole or in part, to carry out its obligations under this Agreement/contract due to Force Majeure must provide notice to the other Party. Initial notice may be given orally or by message/whats app etc.; however, written notice with particulars of the event or occurrence should be given as soon as reasonably possible. A Party claiming Force Majeure will diligently use all reasonable efforts to remove the cause, condition, event or circumstance of such Force Majeure, will promptly give written notice to the other Party of the termination of such Force Majeure, and will resume performance of any suspended obligation as soon as reasonably possible after termination of such Force Majeure. For purposes of this Agreement, "Force Majeure" will mean including but not limited to fire, floods, embargoes, war, acts of war (whether war be declared or not), acts of terrorism, insurrections, riots, civil commotions, strikes, lockouts or strikes other labor disturbances, acts of God , blockades, insurrections, epidemics or like catastrophe, landslides, national/ State emergencies, lightning, earthquakes, storms, floods, washouts, arrests and restraints of the Government, either central or state, inability of the institution to collect fees due to existing or future rules, voluntary or involuntary compliance with any regulation, law or order of any government, orders and laws of governmental authorities (both Central and state), interruptions or lockdowns /temporary closure of the institution by the competent authority/government or court orders, present and future orders of any regulatory body having proper jurisdiction, any disruption of, or suspension of studies, civil disturbances, explosions, sabotage, drastic fall in strength of students ,non-payment of fees by substantial number of students , accident /damage to institution building, the necessity for making major repairs or alterations to institution building, continued breakdown/failure of communication/internet or power supply, freezing of bank accounts or delays in acting by any governmental authority or the other party or occurrence of any event which materially interferes with the ability of a Party to perform its obligations or duties. The Party subject to the Force Majeure Event shall not be liable to the other Party for any damages

arising out of or relating to the suspension or termination of any of its obligations or duties under this Agreement by reason of the occurrence of a Force Majeure Event.

36. You will be required to follow the conduct and discipline rules and regulations as prescribed by the management from time to time and any breach of the conditions shall entail action which may include termination. If at any time, in the opinion of the institution's management, which is final in this matter, you are insolvent or found guilty of dishonesty, disobedience, disorderly behavior, negligence, insubordination, indiscipline, absence from duty without permission or any other conduct considered by us detrimental to our interest or violation of one or more terms of this letter, this assignment may be terminated without notice and/ or reason.
37. Your services are transferable to any other Institution run by the same Management. You can also be sent on deputation to other Institutions.
38. You agree that the emoluments are incurred for specific performance which is mandatory. You agree to perform such other duties and conform to such other instructions relating to your assignments as may be required or be issued to you from time to time by the competent / designated authority.
39. In case of all dispute / confusion / clarification related to the terms of this letter the decision of the institution shall be final and binding. All legal disputes would be strictly under Jurisdiction of Bengaluru Courts only.
40. The above terms and conditions of assignment are subject to change & you will be communicated as and when the changes are affected which will be binding on you.

If the above terms and conditions are acceptable to you, please communicate the acceptance of the assignment terms, by signing and returning one copy, for our records. If no reply accepting the assignment terms is submitted, this letter shall be deemed as cancelled and void.

We look forward to working with you in an institution that is challenging, stimulating and striving towards excellence in the field of education.

Yours truly,
For, **Ebenezer International School**



(Ms. Rati Khandelwal)
Authorised Signatory

I have read, understood and have agreed to all terms and conditions as mentioned in the above Letter of Assignment.

(Mr. K Jordan Stevenson)

Date: